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CASE #	CASE NAME	HEARING NAME
CVRI2403057	LYNSIE B. ASHTON, SPECIAL ADMINISTRATOR FOR DECEASED PLAINTIFF PATRICIA L. NISSEN. vs NISSEN	MOTION FOR ORDER ENFORCING JUDGMENT, COMPELLING RELEASE OF FUNDS, AND DETERMINING THAT THE PRESERVATION LIEN BEARS INTEREST AT THE LEGAL RATE OF 10% PER ANNUM
CVRI2403057	LYNSIE B. ASHTON, SPECIAL ADMINISTRATOR FOR DECEASED PLAINTIFF PATRICIA L. NISSEN. vs NISSEN	MOTION TO SET ASIDE

Tentative Ruling:

The Court **GRANTS** Plaintiff's request for judicial notice. The Court finds Plaintiff's motion is timely. The Court GRANTS Plaintiff's motion to set aside and SETS ASIDE and VACATES the June 5, 2026 Judgment. The Court DENIES Defendants' motion to enforce the Judgment as moot.

The Court enters a corrected Judgment as follows: (1) Judgment is entered in favor of Defendants Gary G. Nissen, Alan Nissen, Laurie Nissen, and Extreme Toys Family Partnership and against Plaintiff Patricia L. Nissen (deceased, by and through her Successor in Special Administration, Lynsie B. Ashton) on all causes of action asserted in the Verified Complaint filed June 4, 2024; (2) Plaintiff shall take nothing by way of her Complaint; (3) the Court's prior orders awarding monetary sanctions as to Plaintiff and Plaintiff's counsel, Mark A. Mellor and The Mellor Law Firm, jointly and severally, shall pay to Defendants the total sum of \$2,720.00 (\$1,360.00 on Gary G. Nissen's Requests for Admission, Set One, and \$1,360.00 on Alan Nissen's Requests for Admission, Set One), plus interest at the legal rate from the date of the original November 17, 2025 orders until paid in full; and (4) Defendants shall recover their costs of suit in the amount to be determined by the filing of a Memorandum of Costs pursuant to California Rules of Court, rule 3.1700.

Procedural History

On May 6, 2026, the Court granted Defendants' motion for summary judgment based on Plaintiff's deemed admissions.

Defendants submitted a proposed judgment, to which Plaintiff filed an objection. On June 5, 2026, the Court entered Judgment in favor of Defendants on all causes of action asserted in the Complaint. The Judgment states that Plaintiff shall take nothing under the Complaint, and "Plaintiff's counsel, Mark A. Mellor, Esq., of The Mellor Law

Firm, is hereby ordered to release forthwith all funds currently held in The Mellor Law Firm Client Trust Account (Reference: Nissen v. Nissen, RCSC Case No. CVRI2403057) to Defendants... consistent with the preservation lien and rights reserved therein in the amount of \$341,186.00 (plus any accrued interest)." Defendants filed a Notice of Entry of Judgment on June 10, 2026.

Motion to Set Aside Judgment

Plaintiff moves, pursuant to C.C.P. §§ 663 and 663a, to set aside the Judgment and enter a different judgment consistent with the court's ruling on Defendants' motion for summary judgment. She argues that in the MSJ ruling, the court found only that, based on her deemed admissions, Plaintiff failed to support her claims in the Complaint, but the Judgment exceeds that ruling and the issues adjudicated by awarding affirmative relief that was never sought by Defendants. She further argues that while the Stipulation preserved Defendants' rights pending further litigation or court order, it did not automatically award Defendants the funds for simply defeating the Complaint.

In opposition, Defendants argue that the motion is untimely because it was not filed within 15 days of the Notice of Entry of Judgment, and it should be denied on that basis. They also argue that the motion should also be denied on its merits because it is an improper attempt to relitigate issues already decided multiple times. They contend that the Judgment properly implements the Stipulation and court order regarding the preservation lien, and a Cross-Complaint was unnecessary.

In reply, Plaintiff argues that the motion is timely pursuant to C.C.P. § 663a(a)(1) because she filed a Notice of Objection on May 13, 2026, in which she objected to the proposed Judgment, identified the legal grounds relied on in this motion, and asked that ¶ 3 be stricken and a corrected judgment entered. She also argues that contrary to Defendants' argument, there is no evidence that the court considered and rejected Plaintiff's objections to the Judgment, and Defendants did not comply with CRC 3.1312(b) to ensure the objections were properly considered. Finally, she argues that ¶ 3 of the Judgment provides unauthorized affirmative relief, and C.C.P. § 663 is the proper method for attacking the Judgment.

Motion to Enforce Judgment

Defendants move to enforce the Judgment; determine that the preservation lien created by the Stipulation secures the sum of \$341,186 plus interest; and order Plaintiff's counsel to release the funds held in his trust account.

In opposition, Plaintiff argues that Defendants' motion should be denied because the Stipulation merely preserved Defendants' right to later assert a claim to the funds; Defendants never filed a Cross-Complaint or sought affirmative relief in this action; and Defendants only obtained judgment on Plaintiff's Complaint, which gives them no monetary relief. She also argues that Defendants' claim on the deed of trust is time-

barred and cannot be summarily decided, and there is no basis for the interest sought by Defendants.

In reply, Defendants argue that the deemed admissions establish the facts supporting the debt and lien, and based on that and the Stipulation, they are entitled to the \$341,186 plus interest.

Analysis

I. Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of various court filings in the present case, including the Complaint, filed 6/4/24; Gary's Answer, filed 7/8/24; Answer filed by the other Defendants, filed 8/15/24; the August 2024 Stipulation; Minute Order on Defendants' MSJ, dated 5/6/26; Notice of Ruling on Defendants' MSJ, served 5/13/26; Plaintiff's Objection to the Proposed Judgment, filed 5/13/26; Proposed Judgment submitted by Defendants in May 2026; and Judgment entered 6/5/26. The documents are the proper subject of judicial notice; the Court GRANTS the request. (Evid. Code § 452(d).)

II. The Judgment Shall Be Set Aside and Vacated Pursuant to C.C.P. § 663

A. The Motion Is Timely

Plaintiff moves to set aside the Judgment and have a corrected judgment entered pursuant to C.C.P. § 663. Pursuant to C.C.P. § 663a(a), "[a] party intending to make a motion to set aside and vacate a judgment, as described in Section 663, shall file with the clerk and serve upon the adverse party a notice of his or her intention, designating the grounds upon which the motion will be made, and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts, or in which the judgment or decree is not consistent with the special verdict, either: (1) "[a]fter the decision is rendered and before the entry of judgment," [or] (2) "[w]ithin 15 days of the date of mailing of notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon him or her by any party of written notice of entry of judgment..." (C.C.P. § 663a(a)(1), (a)(2).) "The time period to file a motion to vacate is jurisdictional and cannot be extended due to mistake, inadvertence, surprise, or excusable neglect." (*Conservatorship of Townsend* (2014) 231 Cal.App.4th 691, 702.)

Defendants argue that the motion is untimely because it was filed 16 days after they served and filed Notice of Entry of Judgment. It appears that the motion was filed 16 days after Notice of Entry of Judgment, making it untimely under C.C.P. § 663(a)(a)(2). However, as Plaintiff points out, on May 13, 2026, she also filed a Notice of Objection and Objection to Defendants' Proposed Judgment ("Notice of Objection") stating the proposed judgment did not conform to the motion for summary judgment ruling. (RFJN, Ex. G.)

C.C.P. § 663a requires a party who seeks to set aside a judgment to file and serve notice of his or her intention to seek such relief either after the decision and before entry of judgment, or within 15 days of notice of entry of judgment. (C.C.P. § 663a(a)(1), (a)(2).) Plaintiff filed the Notice of Objection after the decision on the motion for summary judgment was made, and before judgment was entered, so if the Notice of Objection meets the requirements of C.C.P. § 663a(a) for providing notice of intention to set aside the Judgment, it is timely. The notice of intention to set aside a judgment must “designat[e] the grounds upon which the motion will be made, and specify[] the particulars in which the legal basis for the decision is not consistent with or supported by the facts...” (C.C.P. § 663a(a).)

In the Notice of Objection, Plaintiff stated that ¶ 3 of the Proposed Judgment requiring the release of all funds from counsel’s trust account “does not conform to the Court’s May 6, 2026 ruling” because the ruling was based solely on Plaintiff’s Complaint, and Defendants never sought affirmative relief. (RFJN, Ex. G.) The Objection also states: “Plaintiff requests that paragraph 3 be stricken from the proposed judgment, or that the Court enter a corrected judgment limited to the relief actually ordered: judgment in favor of Defendants on Plaintiff’s Complaint, Plaintiff to take nothing by the Complaint, costs and prior sanctions only as otherwise properly authorized, and no order releasing trust-account funds to the Defendants.” (*Ibid.*) This is sufficient to designate the grounds for Plaintiff’s motion to set aside and specify how the legal basis for the decision is inconsistent with the facts. Therefore, the Court finds that the Notice of Objection met the requirements of C.C.P. § 663a(a) for providing notice of intention to set aside the Judgment. As it was filed after the decision on the motion for summary judgment was made, and before entry of judgment, it was timely. Accordingly, the motion is timely.

B. The Motion Shall Be Granted

C.C.P. § 663 states the following:

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.
2. A judgment or decree not consistent with or not supported by the special verdict.

(*Ibid.*)

A motion to vacate under C.C.P. § 663 is a remedy to be used when a trial court draws incorrect conclusions of law or renders an erroneous judgment on the basis of uncontroverted evidence. It allows the court to set aside a judgment that would obviously be reversed on appeal. (*See Simac Design, Inc. v. Alciati* (1979) 92 Cal.App.3d 146, 153.) Importantly, however, a court cannot change any finding of fact. (*Garibotti v. Hinkle* (2015) 243 Cal.App.4th 470, 477.) A party is “aggrieved” under § 663 when the judgment has an immediate, pecuniary and substantial effect on the party’s rights or interests. (*Plaza Hollister Ltd. Partnership v. County of San Benito* (1999) 72 Cal.App.4th 1, 13.) This section does not authorize the making of supplemental findings. (*Knapp v. City of Newport Beach* (1960) 186 Cal.App.2d 669.)

Here, Plaintiff argues that ¶ 3 of the Judgment is based on an incorrect or erroneous legal basis that is not supported by the facts because it grants affirmative relief to Defendants when the motion for summary judgment ruling only found that Plaintiff failed to establish her claims set forth in the Complaint.

As set forth above, Defendants moved for summary judgment of the Complaint based on Plaintiff’s deemed admissions, and on May 6, 2026, the Court granted that motion. In the Complaint, Plaintiff asserted causes of action for violation of Civil Code §2941, cancellation of instrument, quiet title, slander of title, breach of contract, declaratory relief, injunctive relief, and fraud, based on her claims that she paid off the deed of trust held by Gary on the Property, and Gary failed to reconvey the deed of trust to her as required, instead contending that he still holds an interest in the Property. In granting summary judgment on the Complaint, the Court held that the evidence produced by Defendants based on the deemed admissions was sufficient to show that Plaintiff lacked evidence to support her claims, and because the deemed admissions conclusively established those facts, they could not be contested through contradictory evidence. The Court granted judgment on the Complaint and ordered Defendants to submit a proposed judgment.

Defendants submitted a proposed judgment that the Court ultimately signed and entered. The Judgment states that judgment is entered in favor of Defendants on all causes of action asserted in the Complaint and Plaintiff shall take nothing by way of the Complaint. (Judgment at ¶¶ 1-2.) It also requires payment of monetary sanctions previously entered against Plaintiff and her counsel. (Judgment at ¶ 4.) Plaintiff did not, and does not, object to any of these provisions of the Judgment. The paragraph at issue is ¶ 3, which states:

Pursuant to the Stipulation and Order of this Court dated August 14, 2024 (re: sale of the real property located at 1286 Coco Court, Riverside, California, APN 241-401-007, and deposit of net sale proceeds), Plaintiff’s counsel, Mark A. Mellor, Esq., of The Mellor Law Firm, is hereby ordered to release forthwith all funds currently held in The Mellor Law Firm Client Trust Account (Reference: Nissen v. Nissen, RCSC Case No. CVRI2403057) to Defendants ALAN NISSEN, LAURIE NISSEN, and EXTREME TOYS

FAMILY PARTNERSHIP (or as otherwise directed by further order of this Court), consistent with the preservation lien and rights reserved therein in the amount of \$341,186.00 (plus any accrued interest).

(Judgment at ¶ 3.)

In the Stipulation referenced in the Judgment, Defendants agreed to reconvey their rights under the deed of trust and withdraw their demand from escrow so the sale of the Property could close, and Patricia agreed that the reconveyance of the deed of trust did not waive Defendants' rights to assert their claim to those funds "in any future litigation between the parties" if the parties cannot come to an agreement on "a plan to ensure the long term protection of Patricia and the security of the proceeds..." (Stipulation at ¶¶ 1-2.) The Stipulation further provides that "[i]f the parties cannot come to an agreement regarding the long term care and protection of Patricia with respect to the proceeds, and decide to litigate the merits of this matter before the court instead, a preservation lien in the amount of [Defendants'] Demand to Escrow of \$341,186.00 will be held in The Mellor Law Firm Client Trust Account referenced herein in paragraph 4 for the protection of [Defendants] to secure their interest in those funds until decided on by the court. Nothing in the reconveyance of the Assignment DOT by the ALAN Parties detailed in Paragraph 1 above may be construed against them or their rights to those funds should the parties decide to litigate their dispute in the future." (Stipulation at ¶ 2 [emphasis added].)

Defendants contend that ¶ 2 of the Stipulation above provides support for ¶ 3 of the Judgment awarding them \$341,186, plus interest. However, as discussed above, summary judgment was granted only on Plaintiff's claims made in the Complaint, not any affirmative claims of Defendants. In fact, as Plaintiff points out, Defendants make no affirmative claims in the present case. Thus, the Court made no decision on Defendants' right to the funds when it granted summary judgment on Plaintiff's Complaint (only finding Plaintiff could not support her claims, not that Defendants were entitled to relief), and there is therefore no basis for awarding Defendants damages. Furthermore, the Stipulation specifically states that the parties agreed that Defendants' reconveyance of the deed of trust would not waive their right to assert a claim to the funds "in any future litigation between the parties," and it would not be construed against them "should the parties decide to litigate their dispute in the future." (Stipulation at ¶ 2.) Thus, the Stipulation, as written, clearly contemplates future litigation to enforce Defendants' right to the funds.

Based on the above, Plaintiff is correct that the legal basis for awarding Defendants \$341,186 based on summary judgment of Plaintiff's claims is not supported by the facts. Accordingly, the Court **GRANTS** Plaintiff's motion. The Court **SETS ASIDE and VACATES** the Judgment entered on June 5, 2026. A corrected Judgment shall be entered as follows:

1. Judgment is entered in favor of Defendants GARY G. NISSEN, ALAN NISSEN, LAURIE NISSEN, and EXTREME TOYS FAMILY PARTNERSHIP and against Plaintiff PATRICIA L. NISSEN (deceased, by and through her Successor in Special Administration, Lysie B. Ashton) on all causes of action asserted in the Verified Complaint filed June 4, 2024.
2. Plaintiff shall take nothing by way of her Complaint.
3. The Court's prior orders awarding monetary sanctions as to Plaintiff and Plaintiff's counsel, Mark A. Mellor and The Mellor Law Firm, jointly and severally, shall pay to Defendants the total sum of \$2,720.00 (\$1,360.00 on Gary G. Nissen's Requests for Admission, Set One, and \$1,360.00 on Alan Nissen's Requests for Admission, Set One), plus interest at the legal rate from the date of the original November 17, 2025 orders until paid in full.
4. Defendants shall recover their costs of suit in the amount determined by the filing of a Memorandum of Costs pursuant to California Rules of Court, rule 3.1700.

As the Judgment is Vacated, the Court finds that Defendants' motion to enforce said Judgment is moot.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600511	MARCIAL vs HYUNDAI MOTOR AMERICA	MOTION TO COMPEL

Tentative Ruling:

The Court DENIES the motion to compel arbitration on the ground that no valid and enforceable arbitration agreements exists.

Factual / Procedural Context:

Plaintiff, Manuel Alfredo Perez Marcial, alleges that on 2/18/23, he purchased a new 2023 Hyundai Palisade from Cardinale Way Hyundai in Corona, which was manufactured and/or distributed, and warranted by Defendant, Hyundai Motor America (HMA). The vehicle had defects and nonconformities to warranty, which substantially impair the use, value, and safety of the vehicle including ignition issues, defects in warning lights/symbols, and braking issues. He alleges that neither HMA nor its authorized repair facilities could conform the vehicle to warranties after a reasonable time. And HMA has failed to repair/replace the vehicle, or provide restitution. Plaintiff filed his Complaint on 1/20/26 alleging five causes of action: 1) violation of the Song Beverly Consumer Warranty Act (SBCWA) – Civil Code § 1793.2(d); 2) violation of the SBCWA – CC § 1793.2(b); 3) violation of the SBCWA – breach of express warranty; 4) violation of the SBCWA – breach of implied warranty; and, 5) violation of Bus. & Prof. Code § 17200.